

The Bihar Bhoodan Yagna Rules, 1955

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State of Bihar - Act

The Bihar Bhoodan Yagna Rules, 1955

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The Bihar Bhoodan Yagna Rules, 1955

Rule THE-BIHAR-BHOODAN-YAGNA-RULES-1955 of 1955

Published on 21 October 1955

Commenced on 21 October 1955

[This is the version of this document from 21 October 1955.]

[Note: The original publication document is not available and this content could not be verified.]

The Bihar Bhoodan Yagna Rules, 1955

Published vide Notification No. 6-90-EA/II-2010-55/LR, dated 21.10.1955

The Bhoodan Yagna Rules, 1955 have been framed under section 25 of the Bihar Bhoodan Yagna Act, 1954 (Bihar Act, XXII of 1954) see notification no. 55-L. R., dated the 21st October, 1955.

1.

Short title and commencement.

(a)

These rules may be called the Bihar Bhoodan Yagna Rules, 1955.

(b)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"the Act" means the Bihar Bhoodan Yagna Act, 1954;

(b)

"danpatra" means the Bhoodan Yagna Danpatra referred to in subsection (1) of Section 10;

(c)

"donor" or "declarant" means the owner of any land who has donated such land by a danpatra in pursuance of the Bhoodan Yagna before or after the commencement of the Act;

(d)

"form" means a form set out in the Schedule;

(e)

"Gram Panchayat" means a Gram Panchayat established under Section 3 of the Bihar Panchayat Raj Act, 1947.

(f)

"grantee" means any person to whom land has been granted under sub-section (1) of Section 14 and is deemed to have been granted under sub-section (3) of Section 15; [and includes his heirs, assigns or successor in interest]

[Renumbered by by notification no. 604 L.R., dated the 20th/21st January, 1963.]

(g)

["schedule", means a schedule appended to these rules; and]

[Inserted by notification no. 604 L.R., dated the 20th/21st January, 1963.]

(h)

["section" means a section of the Act;]

[Renumbered by by notification no. 604 L.R., dated the 20th/21st January, 1963.]

(i)

["village community" means and includes all sections of the community represented by all the adult members of all such sections residing in a village or part thereof, declared as village community by the Bhoodan Yagna Committee.]

[Inserted by by notification no. 604 L.R., dated the 20th/21st January, 1963.]

3.

Filing and publication of the danpatra.

- A danpatra shall be filed under sub-section (2) of Section 10 either by the donor himself or by his authorised agent, or by an agent appointed by the committee in that behalf.

(2)

Every danpatra filed before the Revenue Officer shall be entered in the register in Form I.

(3)

After a danpatra has been entered in the register, the Revenue Officer shall publish it in the following manner inviting objection, namely:-

(a)

a notice in Form II together with a copy of the danpatra shall be affixed at a conspicuous place in the village as well as in the office of the Gram Panchayat, if any, within whose local limits the donated land is situated:

(b)

copies of such notice shall also be served on the donor and on the committee.

(4)

Any objection filed in pursuance of such notice shall be in writing and in duplicate.

4.

Mode of service of public notice and disposal of objection.

(1)

The Revenue Officer shall enter every objection filed under Rule 3 in the register in Form III and fix a date for its hearing of which a public notice in Form IV shall be given calling upon persons interested to attend the inquiry and produce such evidence oral or documentary as they may choose to adduce in support of their claims or objections.

(2)

A copy of the notice referred to in sub-rule (1) shall be affixed in the office of the Revenue Officer and copies of the

notice shall be served on the declarant and the objector under registered post with acknowledgement due. A copy of the notice with a copy of the objection filed under Rule 3 (3) shall also be served on the committee or its authorised agent.

5.

Service report.

- The serving officer shall endorse or annex or cause to be endorsed or annexed, on or to the original notice referred to in Rule 3 or 4, a return stating the date on which and the manner in which, the notice was served and, shall, if possible, get the report attested by two persons witnessing the service;

Provided that this rule shall not apply to a notice served under registered post.

6.

Manner of inquiry by the Revenue Officer.

- On the date fixed for hearing or on any adjourned date the Revenue Officer shall, after hearing the declarant, the objector and the authorised agent of the committee and after taking into consideration such other evidence as may be produced on their behalf and after making such further enquiry as he deems necessary, either confirm or supersede the danpatra, in whole or in part.

6A.

[Written undertaking to the State Government under Section 12 foregoing compensation [including ad-interim payment] payable in respect of vested lands.

[Inserted by Notification No. 8916 L.R. dated the 9th November, 1956.]

- An undertaking to the State Government in writing under section 12 by a proprietor or a tenure-holder foregoing compensation (including ad-interim payment) payable in respect of the lands vested in the State under the Bihar Land Reforms Act, 1950 be in Form VI.]

7.

Order confirming the danpatra and registration of such order.

(1)

Any order confirming a danpatra in whole or in part, under sub-section (4) of Section 11 shall clearly specify the land in respect of which the danpatra has been confirmed and in respect of which it has been superseded.

[x x x x]

[Omitted by notification no. 604 L.R., dated the 20th/21st January, 1960.]

8.

Conditions of grant.

- The grantee of any land shall hold the land granted to him subject to restrictions and conditions imposed by Section 14 or by regulation made under Section 24.

9.

Scheme of Bhoodan Yagna.

- The Committee may, by regulations made under Section 24, formulate the scheme of Bhoodan Yagna.

10.

Conditions of settlement of donated lands prior to distribution.

- The settlement under sub-section (1) of Section 16 shall be made for such period and on such terms and conditions as may be prescribed by regulations made under Section 24:

Provided that such settlement shall be made on money rent only.

11.

Assessment of rent on proprietor's private or landlord's privileged lands, etc.

(a)

In determining the fair rent for the descriptions mentioned, in subsection (2) of Section 18, the Revenue Officer shall have regard to the average rate of rent payable by occupancy raiyats for lands of similar class and with similar advantages in the vicinity.

Explanation. - The expression "average rate of rent" shall mean the average of money rents paid during the previous agricultural year by occupancy raiyats for lands of similar class with advantages in the vicinity.

(b)

The fair rent determined under this Rule together with the requisite participants shall be entered in the rent roll in Form V under the signature and seal of the Revenue Officer. Such rent roll shall form part of the records of proceedings to which

it relates:

Provided that a gairmazrui land shall be exempt from payment of rent for a period of at least three years from the first crop is harvested thereon.

The Schedule

Form I

Register of Bhoodan Yagna Danpatra filed before the Revenue Officer

[See Rule 3 (2)]

Serial No.

Date of presentation

By whom presented

Date of the danpatra

Name and address of the donor

1

2

3

4

5

Village with name of thana and thana No in which
the lands donated are situated

Where objection filed under Section 11 (2)

Substance of order with the date of order

confirming or superseding the danpatra under Section 11(4)

Remarks

6

7

8

9

Form II

Notice of publication of Bhoodan Yagna Danpatra

[See Rule 3 (3)]

Whereas Sri/Shrimati..... son/daughter/wife of..... resident of village..... police station..... district..... has
donated the lands described in danpatra (copy attached hereto) to the Bhoodan Yagna Committee of Sri Acharya
Vinoba Bhave.

It is hereby notified that any person whose interests are affected by the said danpatra may, within thirty days of the
publication of this notice, file a written objection in duplicate to the undersigned.

Given under my hand and seal of the Court this the..... day of..... 20.

Seal of the Court

Revenue Officer

Form III

Register of Objections filed before the Revenue Officer

[See Rule 4(1)]

Serial No.

Date of filing the objection

Serial No. and date of the danpatra to which the
objection relates

Name and address of the objector

Substance of objection

1

2

3

4

5

Date of issue of public notice under Section 11

(3)

Date of service of the public notice

Substance of order with date on the objection

Remarks

6

7

8

9

Form IV

Public Notice of Objection

[See Rule 4(1)]

Before.....at..... For publication at village..... police station..... thana..... thana No.....

To whom soever it may concern

Whereas Sri/Srimati.....son/daughter/wife of.....resident of village..... police station..... district..... has donated the land described below in pursuance of Bhoodan Yagna initiated by Sri Acharya Vinoba Bhave.

And whereas Sri/Srimati..... son/daughter wife of.....resident of village..... police station..... district..... has filed objection against the aforesaid donation which will be heard on..... at.....

It is, therefore, notified for general information that any person interested may attend the hearing on the said date, time and place with such evidence as he may like to produce in support of his claim or objection as the case may be.

Take notice that in default of appearance on the day aforesaid the objection will be heard and disposed of ex parte.

Description of land

Name of village, Halka, Circle/ Anchal etc. in which the donated lands are situate

Class of lands

Plot Nos. with Khata Nos. or boundaries thereof

Area of lands donated

Tauzi /Khewat No.

Rent of lands donated

Remarks

1

2

3

4

5

6

7

Given under my hand and the seal of the Court this the.....day of 20.....

Seal of the Court.

Revenue Officer

Form V

Rent-roll showing fair rent determined in respect of the donated lands of the description mentioned in Section 18 (2) of the Bihar Bhoodan Yagna Act, 1954

[See Rule 11(b)]

District..... Sub-division..... Circle/Anchal..... Halka No.....

Serial No. (Rent assessment case)

Date of institution

No. and date of the danpatra

Name of village (in which lands donated lie) with thana and thana No.

Name of estate with tauzi

Khewat

1

2

3

4

5

6

Particulars of donated lands

Average rate of rent fixed

Fair rent fixed

Remarks (Signature of the Revenue Officer with date)

Class

Khatian

Plot No.

Area

7

8

9

10

11

12

13

Seal of.....

Signed by.....

By Order of the Governor of Bihar

Revenue Officer

Deputy Secretary to Government

Form VI

Undertaking to the State Government under Section 12 foregoing compensation (including ad-interim payment) in respect of vested lands.

[See Rule 6-A]

This indenture made thisday of..... 20..... (in word) between..... son of Shri..... resident of village.....P.O.....P.S.....in the district of.....of the one part and the Governor of Bihar of the other part.

Whereas the estate of the said..... bearing tauzi no.....in the district of..... has vested in the State of Bihar under the Bihar Land Reforms Act, 1950 (Bihar Act XXX of 1950);

And whereas before the commencement of the Bihar Bhoodan Yagna Act, 1954 (Bihar Act XXII of 1954) the said.....made a declaration in writing purporting to donate..... acres of lands particulars whereof are given in the schedule hereunder to Shri Acharya Vinoba Bhave which are comprised in the said estate;

And whereas the said lands cannot be transferred by the State Government to and vest in the Bhoodan Yagna Committee unless an undertaking in writing is given by the saidto the State Government to the effect that the said.....would forego the compensation (including ad-interim payment) payable in respect of the said lands under the Bihar Land Reforms Act, 1950;

And whereas the said.....has been called upon by the Governor of Bihar to give the said undertaking in writing;

And whereas the said.....has voluntarily agreed to forego the compensation (including ad-interim payment) payable to the said.....his heirs, legal representatives and assigns in respect of the said lands;

Now this indenture witnesseth that in pursuance of the said agreement the said.....both hereby release the said Governor of Bihar, his successor in office and assigns from all claims and demands whatsoever on account of compensation (including ad-interim payment) payable to the said.....his heirs, legal representatives and assigns in

respect of the said lands and the Bihar State Government shall be competent to transfer the said lands to the Bhoodan Yagna Committee for purposes of the Bhoodan Yagna.

In witness whereof the abovementioned.....has hereunto set his hand the day and year first above written.

SignedIn the presence of-(1)(2)

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